

		Defendants argue plaintiff's nonindividual PAGA claims should be stayed pending completion of the arbitration of plaintiff's individual PAGA claims. Plaintiff opposes. <i>Adolph v. Uber Technologies, Inc.</i> (2023) 14 Cal.5th 1104 does not require a stay of nonindividual PAGA claims pending arbitration of individual PAGA claims. The court has discretion, however, to stay a court action when an issue involved in the case is ordered to arbitration. <i>Adolph</i>, 14 Cal.5th at 1123-24. The court elects to exercise its discretion to stay the court action pending completion of the arbitration. That procedure avoids the possibility of, e.g., inconsistent determinations of whether plaintiff does or does not have standing under PAGA, i.e., whether plaintiff did or did not suffer a Labor Code violation during employment. A decision about the potential preclusive effect of an arbitration ruling on the court action here is premature. Defendants' Request for Judicial Notice, submitted with defendants' reply, is denied. The superior court action is stayed pending completion of the arbitration. An ADR Review hearing is scheduled for <u>July 11, 2024 at 9:00 a.m.</u> in Department CX104. The parties are ordered to file a joint status conference report at least five court days before the hearing. Defendants to give notice. <u>Status Conference</u> In light of the court's concurrent ruling on defendants Rod Fraser Enterprises, Inc. and Roderick A. Fraser II's motion to compel arbitration, the status conference scheduled for January 11, 2024 at 2:00 p.m. in Department CX104 is vacated. Clerk to give notice.
7	Surby v. ARB, Inc. 2021-01194784	<u>Plaintiff's Motion for Approval of PAGA Settlement</u> "Because an aggrieved employee's action under the Labor Code Private Attorneys General Act of 2004 functions as a substitute for an action brought by the government itself, a judgment in that action binds all those, including nonparty aggrieved employees, who would be bound by a judgment in an action brought by the government." <i>Arias v. Superior Court</i> (2009) 46 Cal.4th 969, 986. PAGA settlements are subject to trial court review "to determine whether [they are] fair, reasonable, and adequate in view of PAGA's purposes to remediate present labor law violations, deter future ones, and to maximize enforcement of state labor laws." <i>Moniz v. Adecco USA, Inc.</i> (2021) 72 Cal.App.5th 56, 77. The court has reviewed and considered the papers filed in support of plaintiff's motion for approval of a \$90,000 PAGA

		settlement. The court has the following questions and comments: 1. Were the motion papers served on the LWDA? The email confirmation from the LWDA that plaintiff submitted with the moving papers (Ackerman Decl. (ROA 151) Ex. 7) refers only to the "proposed settlement." Plaintiff must file with the court a proof of service identifying the specific documents served on the LWDA, when plaintiff served the documents, and how service was effected. <u>As to the settlement:</u> 2. Are the parties aware of any related pending actions or other cases that may be impacted by the settlement? 3. The Release by Aggrieved Employees in paragraph 5.2 of the settlement agreement is overbroad because it includes "all claims where suspected or unsuspected, contingent or accrued, known or unknown, that have been pled or could have been pled under state, federal or local law, whether statutory, common law or administrative, arising out of or related to allegations set forth in Plaintiff's PAGA Notices, the Action, and Plaintiff's Complaint and First Amended Complaint, and arising during the PAGA Period." The Release by Aggrieved Employees must be limited to claims for civil penalties based on the facts alleged in the operative complaint and the notice letter(s) to the LWDA. 4. Please provide a description of the expected high, low and average payments to the Aggrieved Employees, and the expected amount to be received by plaintiff (excluding any incentive award). 5. Do the parties intend for the Aggrieved Employees to be able to dispute the number of pay periods? If so, the settlement agreement (and the notice) should be amended to address the dispute procedure. 6. Why is an incentive award appropriate and, if it is, why is \$7,500 a reasonable amount? 7. Plaintiff seeks \$12,625.84 in costs, including legal research and postage costs. Plaintiff should provide legal authority supporting an award of legal research and postage costs. <u>As to the notice:</u> 8. The notice should revised as necessary consistent with the above.
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		hearing addressing the status of the settlement administration, including the actual amounts paid to the Aggrieved Employees and the other amounts distributed under the settlement, including any uncashed checks. The hearing on plaintiff's motion for approval is continued to <u>April 25, 2024 at 2:00 p.m.</u> in Department CX104 to permit the parties to address and respond to the above issues. A supplemental brief shall be filed at least 9 court days before the hearing and shall address as necessary each of the above points. If required, an amendment to the settlement agreement shall be submitted, rather than an "amended settlement agreement," to streamline the court's review of the documents. The parties shall provide redlined copies of any revised documents (e.g., revised settlement agreement, revised notice, revised proposed order). Plaintiff is ordered to give notice, including to the LWDA, and to file a proof of service. Plaintiff must also serve the LWDA with any supplemental brief and any amended settlement documents, and file a proof of service.
8	Velasquez v. Team Blaze 2021-01187932	<u>Plaintiffs' Motion for Preliminary Approval of Class Action and PAGA Settlement</u> The court has reviewed and considered the papers filed in support of plaintiffs' motion for preliminary approval of a class action and PAGA settlement. The court has the following questions and comments: 1. Were the motion papers served on the LWDA? The Hyun Declaration (ROA 92, ¶ 13) states plaintiffs' counsel served some of the motion papers on the LWDA, but there is no proof of service and no evidence plaintiffs' counsel served, e.g., the declarations in support of the motion on the LWDA. Plaintiffs must file with the court a proof of service identifying the specific documents served on the LWDA, when plaintiff served the documents, and how service was effected. 2. Plaintiffs' PAGA letter(s) to the LWDA must be submitted to the court. <u>As to the settlement:</u> 3. The class definition should be limited to employees in California consistent with the complaint and the definition of PAGA Group. 4. Paragraph III.42 of the settlement agreement seeks up to \$200,000 in attorneys' fees, while paragraph IV.47(f) seeks up to \$199,980 in attorneys' fees. 5. Paragraph III.41 requires payments to "the recipients designated herein" within 15 calendar days of the final payment, which appears to create ambiguity and/or